

1. Core point: a law/project decision is not implementation

In Kosovo, a project does not become “implemented” just because a law, government decision, municipal decision, or strategy exists. A law usually only creates the **legal basis**. Real implementation normally requires: secondary legislation, budget allocation, permits, procurement, contracts, execution, payments, supervision, and finally operational use. Your project notes capture this well: **“Miratimi i ligjit nuk nënkupton zbatim automatik të projektit”** — a law creates a legal basis, but implementation requires administrative, budgetary, procurement, permitting, contracting, and operational steps.

A useful implementation chain is:

Stage	Albanian term	What it means	Is it implemented?
Idea	Ideja e projektit / nevoja publike	Policy need identified	No
Draft law/policy	Projektligj / politikë publike	Legal/policy proposal drafted	No
Government approval	Vendim i Qeverisë / miratim nga Qeveria	Proposal sent forward	No
Assembly process	Shqyrtim në Kuvend / amendamente / miratim	Law adopted	Still not enough
Entry into force	Publikim në Gazetën Zyrtare / hyrje në fuqi	Legal basis becomes enforceable	Legal basis only
Secondary acts	Akte nënligjore / udhëzime administrative / rregullore	Implementation rules issued	Partially ready
Budget	Ndarje buxhetore / alokim buxhetor	Money assigned	Enables implementation
Permits	Pëlqim mjedisor / leje ndërtimore / leje mjedisore	Required approvals obtained	Enables physical work
Procurement	Tender / prokurim publik / kontratë publike	Contractor/operator selected	Implementation may begin

Execution	Zbatim i kontratës / punime / shërbime / pagesa	Work/service delivery	In progress
Operation	Funksionalizim / vënie në funksion / operim	Service/facility actually works	Implemented

This distinction is crucial for waste management. Kosovo may have laws, strategies, and regulations, but if municipalities do not contract operators, collect fees, pay operators, issue local plans, or enforce rules, the system remains weak.

2. Public enterprises in Kosovo: what “Sh.A.” means

Sh.A. / Shoqëri Aksionare means **joint-stock company**. It does **not** automatically mean private company. Kosovo’s Law on Publicly Owned Enterprises says that public enterprises are organized as joint-stock companies under the business/company law framework, and that ownership interests in a public enterprise are represented by registered shares.

(gzk.rks-gov.net)

The same law distinguishes between:

Type	Albanian term	Owner/shareholder
Central public enterprise	Ndërmarrje Publike Qendrore / NP Qendrore	Republic of Kosovo
Local public enterprise	Ndërmarrje Publike Lokale / NP Lokale	One or more municipalities

The law states that all enterprises listed as central public enterprises are owned by the Republic of Kosovo, while local public enterprises are owned by the municipality or municipalities listed for that enterprise. It also says an enterprise can be treated as public when it is **50% or more publicly owned**, directly or indirectly, by the Republic of Kosovo and/or one or more public authorities. (gzk.rks-gov.net) If public ownership drops below 50%, the enterprise is no longer treated as an NP under that law. (gzk.rks-gov.net)

So, the key rule is:

“Sh.A.” describes the corporate form. Ownership depends on who holds the shares. A Sh.A. can be public if the shares are held by the state or municipalities.

3. Who do public enterprises answer to?

Public enterprises have a corporate governance chain, not a normal ministry/department chain.

For **central public enterprises**, the Government exercises the shareholder rights of the Republic of Kosovo. The law says the Government has exclusive competence to exercise shareholder rights in central public enterprises, while decisions are implemented through the responsible minister acting on behalf of the Republic of Kosovo. (gzk.rks-gov.net)

For **local public enterprises**, the municipality exercises shareholder rights through a **Komision Komunal i Aksionarëve** — Municipal Shareholders' Commission. This commission is made up of one member appointed by the mayor and two appointed by the municipal assembly, and it acts on behalf of the municipality. (gzk.rks-gov.net)

Inside the company, the structure is generally:

Shareholder(s) → Board of Directors → CEO / Executive Management → Departments / Operations

A local public enterprise board is composed of five directors; four are elected by shareholders, and the fifth is the CEO selected by the board. If more than one municipality owns shares, each municipal shareholders' commission has rights in the director-selection process. (gzk.rks-gov.net)

Importantly, the shareholder is not supposed to run day-to-day operations. Public enterprises operate as companies, with business plans, financial reporting, boards, audit committees, and executive management. The law requires business plans and quarterly/annual reporting to the board and then, depending on the case, to the Government or municipal shareholders' commissions. (gzk.rks-gov.net)

4. KMDK / KLMC: what it is and who it answers to

KMDK = Kompania për Menaxhimin e Deponive në Kosovë Sh.A.

English: **Kosovo Landfill Management Company / KLMC**

KMDK is not a private company. It is a **central publicly owned enterprise**. In simple terms:

KMDK is the state-owned landfill/disposal company.

Its governance chain is:

Republic of Kosovo / Government → Ministry/public-enterprise monitoring framework → Board of Directors → CEO → landfill/disposal operations

Operationally, KMDK manages landfill/disposal infrastructure. It is not the normal household waste collection company. The distinction from the earlier notes is important: **KMDK manages disposal sites, while waste collection companies bring waste to those sites.**

So if waste is not collected from households, that is usually not KMDK's direct operational responsibility. If landfills, transfer stations, disposal tariffs, landfill access, landfill debts, or disposal capacity are the issue, KMDK becomes central.

5. Pastrimi: what it is and who it answers to

KRM "Pastrimi" Sh.A. = Kompania Rajonale e Mbeturine "Pastrimi" Sh.A.

Pastrimi is also not a private company. It is a **local/regional publicly owned enterprise**. It is owned through the municipal public-enterprise framework, not by private shareholders. The uploaded notes identify Pastrimi as a regional/local public enterprise whose shareholders are municipalities, and explain that the "Sh.A." label does not make it private.

Its governance chain is roughly:

Municipal shareholder(s) → Municipal Shareholders' Commission(s) → Board of Directors → CEO / Management → collection and transport operations

Pastrimi's operational role is different from KMDK's:

Company	Main function
Pastrimi	Collection and transport of municipal waste
KMDK	Landfill/disposal-site management

The Waste Law supports this division: municipalities regulate and organize municipal waste services, including collection, separation, container placement, schedules, and transport rules, while municipal waste management must be done through special contracts with one or more licensed public or private operators. (gzk.rks-gov.net)

6. Municipality role in waste management

Under the Waste Law, municipalities are not passive actors. They have major responsibilities, including:

- creating the municipal waste-management system;
- drafting local waste-management plans;
- making sure municipal plans match the national plan;
- organizing and regulating service delivery;
- selecting licensed persons/operators through procurement;
- setting tariffs and the method of fee collection;
- supervising and controlling waste-management measures through municipal environmental inspectors. (gzk.rks-gov.net)

So the municipality is both a **service organizer/regulator** and, where it owns shares in a company like Pastrimi, also a **shareholder**. This creates a structural tension: the municipality is not the same thing as Pastrimi, but it also owns and supervises Pastrimi through shareholder mechanisms.

7. Central government role in waste management

At the central level, the responsible environmental ministry framework has responsibility for policy, strategy, legislation, licensing, data systems, national reporting, and ensuring waste is managed by licensed persons in permitted facilities. The Waste Law lists the Ministry and municipalities as competent authorities for waste administration. (gzk.rks-gov.net)

The Ministry's responsibilities include general policy, strategy, legal acts, waste-management plans, licensing, registers, permits for import/export/transit, data systems, and ensuring waste is managed by licensed persons in permitted facilities. (gzk.rks-gov.net)

So the central level sets the framework, but much of the actual municipal waste service is implemented locally.

8. Where the blockages appear

A. Legal basis exists, but implementation is fragmented

Kosovo's waste law and strategy create a relatively broad legal framework. The official 2021–2030 waste strategy itself says the legal framework is well developed, but implementation is weakened by insufficient monitoring/control resources and weak incentive/penalty mechanisms for waste producers. (gzk.rks-gov.net)

This means the blockage is often not “no law exists,” but rather:

laws and strategies exist, but the implementation chain breaks at budget, enforcement, procurement, contracts, tariffs, data, or institutional coordination.

B. Central-local split

The central government handles policy, legal framework, licensing, strategy, and central public enterprises like KMDK. Municipalities handle local waste plans, collection organization, tariffs, contracts, and local enforcement. This split is legally normal, but in practice it creates gaps when one level depends on the other.

Example blockage:

Central government can approve strategy and landfill policy, but municipalities still have to organize collection, contract operators, collect fees, and enforce local rules.

C. KMDK-Pastrimi split

Pastrimi depends on waste-fee revenue to pay workers, fuel, trucks, and disposal costs. KMDK depends on operators like Pastrimi paying landfill/disposal fees. If citizens do not pay, or if the municipality/operator dispute who collects the fee, cash flow problems move through the chain.

The 2025 Prishtina/Pastrimi dispute illustrates this clearly. Pastrimi is a separate public company, not a municipal department, with its own payroll, fuel costs, landfill fees, debts, and bank accounts. The dispute was about who controls/receives waste-fee money in Prishtina. KALLXO reported that the Supreme Court refused Prishtina Municipality's request to suspend the amended waste regulation, and that the regulation provided for waste bills to be paid directly to KRM "Pastrimi" Sh.A.; the same report says the crisis began on 13 May 2025 when Pastrimi stopped collection, citing a €2.7 million municipal debt. ([Raporto Korrupsionin! KALLXO.com](#))

D. Municipal ownership does not mean municipal department

This is one of the biggest misunderstandings. Even if a municipality owns shares in Pastrimi, Pastrimi is still a separate company. It has a board, CEO, budget, workers, liabilities, and contracts. The municipality acts as shareholder and service organizer, but the company performs operations.

So a blockage can appear when:

the municipality acts politically/administratively, while the company needs predictable operational revenue.

E. Tariff and billing uncertainty

The Waste Law gives municipalities authority over tariffs and collection methods for municipal services. ([gzk.rks-gov.net](#)) But when the operator provides the service and needs direct cash flow, disputes over whether citizens pay the municipality or the operator can destabilize the whole service.

This is exactly the kind of institutional weakness you want to point out: the system may be public on all sides, but still fail because the money flow is unclear or contested.

F. Weak enforcement, weak data, incomplete licensing/permitting

The national strategy identifies the need to strengthen regulation and control, create a comprehensive waste information system, and expand licensing/permits to cover all waste, operators, and management facilities. ([gzk.rks-gov.net](#)) It also says waste collection coverage has improved but is still not universal. ([gzk.rks-gov.net](#))

So the blockage is not only “who collects trash,” but also:

weak data, incomplete licensing, weak inspection, weak enforcement, and lack of full service coverage.

9. Simple responsibility map

Level	Institution/company	Responsibility
Central policy	MMPHI / environmental ministry framework	Waste law, strategy, environmental rules, licensing framework, national reporting
Central public-enterprise ownership	Government / Ministry of Economy / monitoring unit	Shareholder supervision of central public enterprises
Disposal infrastructure	KMDK / KLMC Sh.A.	Landfill and disposal-site management
Local government	Municipality / Komuna	Local waste plan, tariffs, collection rules, contracting, local inspection, public-space waste
Local public enterprise	KRM Pastrimi Sh.A.	Collection and transport in its service area
Users	Households/businesses	Use service, separate/handle waste where required, pay fees

10. Main conclusion

Kosovo’s weak waste-management system is not only a technical issue. It is an institutional-chain issue.

The central level can create laws, strategies, licensing rules, and own landfill infrastructure through KMDK. The local level must organize collection, tariffs, contracts, billing, inspection, and public compliance. Pastrimi sits in the middle as a municipal/regional public company: publicly owned, but operationally separate. KMDK sits at the disposal end as a central public company. When money, contracts, billing authority, or political responsibility are unclear, the whole chain blocks.

The strongest argument is:

Kosovo's waste system fails where legal responsibility, corporate governance, municipal service delivery, and cash flow do not align. Laws and public ownership exist, but implementation depends on contracts, payment, enforcement, municipal capacity, and functioning coordination between central and local institutions.

Annex A: Legal Framework

A. Core waste-management framework

Act	Albanian name	Why it matters
Law No. 04/L-060 on Waste	Ligji Nr. 04/L-060 për Mbeturina	Main legal framework for waste management: responsibilities, planning, municipal waste, licensing, operators, waste categories, permits, etc. It was amended by Law No. 08/L-071 in 2022.
Strategy 2021–2030 and Action Plan 2021–2023 for Integrated Waste Management in Kosovo	Strategjia 2021–2030 dhe Plani i Veprimit 2021–2023 për Menaxhimin e Integruar të Mbeturinave në Kosovë	Main national strategy for the sector. Useful for pointing out weak implementation, landfill capacity issues, licensing/permitting gaps, financing gaps, recycling, separate collection, and institutional coordination.

B. Public enterprises / Sh.A. / ownership

Act	Albanian name	Why it matters
Law No. 03/L-087 on Publicly Owned Enterprises	Ligji Nr. 03/L-087 për Ndërmarrjet Publike	Main law for central and local public enterprises, including companies like KMDK Sh.A. and KRM Pastrimi Sh.A. It explains ownership, shareholder rights, boards, reporting, and governance. It was amended by Law No. 04/L-111 , Law No. 05/L-009 , and later Law No. 08/L-276 .

Regulation No. 02/2013	Rregullore Nr. 02/2013 për kriteret për themelimin e ndërmarrjeve publike lokale dhe pjesëmarrjen e komunave në bordet e drejtorëve	Important for local public enterprises and municipal participation. It is listed as a bylaw under the Public Enterprises Law.
Administrative Instruction No. 03/2009	Udhëzim Administrativ Nr. 03/2009 për përfaqësimin e komunave në bordet e drejtorëve të ndërmarrjeve publike lokale	Relevant for municipal representation in local public enterprise boards.
Law No. 06/L-016 on Business Organizations	Ligji Nr. 06/L-016 për Shoqëritë Tregtare	Explains the company forms, including Shoqëri Aksionare / Sh.A. Public enterprises use company-law structures, even when publicly owned.

C. Municipal responsibility and local governance

Act	Albanian name	Why it matters
Law No. 03/L-040 on Local Self-Government	Ligji Nr. 03/L-040 për Vetëqeverisjen Lokale	Relevant because waste collection and municipal services are heavily local-government responsibilities. It supports the local/municipal side of the argument.
Regulation on administrative review of municipal acts	Rregullore për shqyrtimin administrativ të akteve komunale	Useful when discussing municipal regulations, municipal waste rules, tariffs, or disputes over municipal acts. The Official Gazette lists this type of regulation under the Local Self-Government Law.
Administrative Instruction MLGA No. 06/2018 on Minimum Standards of Public Consultation in Municipalities	Udhëzim Administrativ MAPL Nr. 06/2018 për Standardet Minimale të Konsultimit Publik në Komuna	Relevant when municipalities adopt waste regulations, tariffs, local plans, or local service rules.

D. Project implementation, budget, procurement

Act	Albanian name	Why it matters
Law No. 03/L-048 on Public Financial Management and Accountability	Ligji Nr. 03/L-048 për Menaxhimin e Financave Publike dhe Përgjegjësitë	Relevant for budget allocations, capital projects, public spending, payments, and whether a project has real financing.
Administrative Instruction GRK No. 03/2015 on Budget Impact Assessment for New Government Initiatives	Udhëzim Administrativ QRK Nr. 03/2015 për Vlerësimin e Ndikimit Buxhetor për Iniciativat e Reja Qeveritare	Useful when arguing that a new law/project needs budget-impact assessment and cannot be treated as implemented just because it was approved.
Administrative Instruction GRK No. 09/2021 amending AI No. 03/2015	Udhëzim Administrativ QRK Nr. 09/2021 për ndryshimin/plotësimin e UA Nr. 03/2015	Same topic: budget impact for new initiatives.
Administrative Instruction MoF No. 04/2019 on Capital Projects and Classification of Capital Project Expenditures	Udhëzim Administrativ MF Nr. 04/2019 për përcaktimin e projekteve kapitale dhe klasifikimin e shpenzimeve të projekteve kapitale	Important for infrastructure-heavy waste projects, landfills, transfer stations, recycling centers, treatment facilities, etc.
Law No. 04/L-042 on Public Procurement	Ligji Nr. 04/L-042 për Prokurimin Publik	Relevant whenever municipalities, ministries, KMDK, or public enterprises procure works, goods, services, trucks, landfill works, consulting, or operators. It has amendments in 2014 and 2016.

E. Environmental approvals and construction

Act	Albanian name	Why it matters
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Law No. 08/L-181 on Environmental Impact Assessment	Ligji Nr. 08/L-181 për Vlerësimin e Ndikimit në Mjedis / VNM	Main current EIA law. Important for landfills, transfer stations, treatment plants, waste facilities, and infrastructure projects. It repealed the older Law No. 03/L-214 .
Administrative Instruction MMPHI No. 03/2025 on licensing persons/entities for drafting EIA reports	UA MMPHI Nr. 03/2025 për procedurat dhe kriteret për licencimin e personave fizikë dhe juridikë për hartimin e raportit të VNM-së	Relevant because EIA reports must be prepared by licensed actors.
Administrative Instruction MMPHI No. 04/2025 on EIA report content/methodology/compliance	UA MMPHI Nr. 04/2025 për përmbajtjen, metodologjinë dhe përputhshmërinë e raportit të VNM-së	Relevant for what an EIA report must contain. Listed under the current EIA law.
Administrative Instruction MMPHI No. 11/2025 on public consultations for EIA reports	UA MMPHI Nr. 11/2025 për procedurat e detajuara për planifikimin dhe organizimin e konsultimeve publike për raportin e VNM-së	Relevant for public consultation around environmental-impact projects. Listed under the current EIA law.
Law No. 03/L-025 on Environmental Protection	Ligji Nr. 03/L-025 për Mbrojtjen e Mjedisit	General environmental framework, including environmental permits/authorizations.
Administrative Instruction MESPI No. 04/2022 for Environmental Permit	UA MMPHI Nr. 04/2022 për Leje Mjedisore	Relevant for environmental permitting of facilities. Listed under the Environmental Protection Law.

Administrative Instruction MEA No. 01/2021 for Environmental Authorization	UA MEA Nr. 01/2021 për Autorizim Mjedisor	Relevant for environmental authorization. Listed under the Environmental Protection Law.
Law No. 04/L-110 on Construction	Ligji Nr. 04/L-110 për Ndërtim	Relevant for construction permits, compliance with construction permits, and certificates of use for infrastructure projects.

F. Important waste-related administrative instructions

These are not all equally central, but they are useful depending on the specific waste stream.

Act	Albanian / English reference	Why it matters
AI No. 09/2014 on Waste Management License	Udhëzim Administrativ Nr. 09/2014 për Licencën për Menaxhimin e Mbeturinave	Key for licensing waste-management operators. Listed under the Waste Law.
AI No. 13/2013 on State Waste Catalogue	Udhëzim Administrativ Nr. 13/2013 për Katalogun Shtetëror të Mbeturinave	Useful for classification of waste types.
AI No. 07/2014 on powers of waste holders, manufacturers and product importers	UA Nr. 07/2014 për kompetencat e mbajtësit të mbeturinave, prodhuesve dhe importuesve të produkteve	Relevant for responsibility of producers/importers/waste holders.
AI MESP No. 20/2014 on Biodegradable Waste Management	UA MMPH Nr. 20/2014 për Menaxhimin e Mbeturinave të Biodegradueshme	Important for organics/biowaste.
AI MESP No. 27/2014 on Packaging and Packaging Waste	UA MMPH Nr. 27/2014 për Menaxhimin e Mbeturinave nga Ambalazhi dhe Paketimet	Relevant for packaging waste and producer responsibility logic.

AI MESP No. 25/2014 on WEEE	UA MMPH Nr. 25/2014 për Menaxhimin e Mbeturinave nga Pajisjet Elektrike dhe Elektronike	Relevant for e-waste.
AI MESP No. 26/2014 on Batteries and Accumulators	UA MMPH Nr. 26/2014 për Menaxhimin e Mbeturinave nga Bateritë dhe Akumulatorët	Relevant for batteries.
AI No. 22/2013 on Medical Human and Veterinary Waste	UA Nr. 22/2013 për Menaxhimin e Mbeturinave Medicinale Humane dhe Veterinare	Important for medical/veterinary waste, which should not be mixed with municipal waste.
AI No. 05/2013 on Used Oils and Waste Oils	UA Nr. 05/2013 për Menaxhimin e Vajrave të Përdorura dhe Mbeturinave të Vajrave	Relevant for oil waste.
AI No. 23/2012 on Waste Tires	UA Nr. 23/2012 për Menaxhimin e Gomave të Hedhura dhe Mbeturinave të Gomave	Relevant for tire waste.
AI No. 19/2012 on End-of-Life Vehicles	UA Nr. 19/2012 për Menaxhimin e Automjeteve të Vjetruara dhe Komponentëve të Tyre	Relevant for abandoned/end-of-life vehicles.
AI No. 20/2012 on Export, Import and Transit of Waste	UA Nr. 20/2012 për Eksport, Import dhe Transit të Mbeturinave	Relevant for cross-border movement of waste.
AI GRK No. 03/2021 on Administration of Hazardous Wastes	UA QRK Nr. 03/2021 për Menaxhimin / Administrimin e Mbeturinave të Rrezikshme	Important for hazardous waste; it is issued under the Waste Law.
AI MEA No. 01/2020 on Waste Containing Asbestos	UA MEA Nr. 01/2020 për Menaxhimin e Mbeturinave që Përmbajnë Azbest	Relevant for asbestos waste.

AI MESP No. 07/2015 on Construction and Demolition Waste	UA MMPH Nr. 07/2015 për Menaxhimin e Mbeturinave nga Ndërtimi dhe Rrënimi i Objekteve	Important for construction/demolition waste, especially municipal infrastructure and construction permits.
AI MEE No. 11/2020 on Plastic Bags	UA MEE Nr. 11/2020 për kërkesat teknike dhe kërkesat tjera për qese të plastikës	Relevant for plastic bag regulation.

G. Municipal regulations

For a specific municipality, also check:

Type	Albanian name	Why it matters
Municipal waste regulation	Rregullore komunale për menaxhimin e mbeturinave	Defines local service rules, fee/billing model, container rules, collection schedules, enforcement, etc.
Municipal waste-management plan	Plani Komunal për Menaxhimin e Mbeturinave	Should translate national law/strategy into local implementation.
Municipal tariff/fee decisions	Vendime për tarifa / taksa / pagesa për shërbimin e mbeturinave	Central for disputes like who invoices, who collects, and how operators are paid.
Contract with operator	Kontratë me operatorin publik/privat të licencuar	Critical evidence of real implementation.